



TERMS OF USE

SHUHARI FINANCE PRIVATE LIMITED

Version 1.0 | Last Updated: [●] 2026

These terms of use ("**Terms**") are issued by **Shuhari Finance Private Limited**, a company incorporated under the Companies Act, 2013, bearing corporate identity number [CIN] and having its registered office at [registered office address] ("**SFPL**", "**we**", "**us**" or "**our**").

SFPL is a non-banking financial company registered with the Reserve Bank of India ("**RBI**") as a Non-Banking Financial Company – Investment and Credit Company (NBFC-ICC) in the Base Layer under the scale-based regulatory framework, holding Certificate of Registration No. [CoR number] dated [CoR date]. **SFPL is the lender.** Credit facilities applied for and availed through the Platform are sanctioned, disbursed and held on the books of SFPL, whether solely or, where applicable, jointly with a co-lender or other regulated entity in accordance with applicable RBI directions.

These Terms govern your ("**User**", "**you**", "**your**") access to and use of:

- (a) our website hosted at <https://shuhari.finance/> ("**Website**"); and
- (b) any other digital lending application operated by us, or by a lending service provider on our behalf, and identified on the Website ("**App**"), including all future releases,

together, the "**Platform**".

These Terms apply to you whether you are a registered borrower, a registered user, an unregistered visitor, an applicant whose application has not been sanctioned, or any other person accessing or using the Platform.

Please read these Terms together with:

- (a) our Privacy Policy, available at <https://shuhari.finance/privacy-policy> ("**Privacy Policy**");
- (b) the list of our digital lending applications and lending service providers, available at [URL];
- (c) our Fair Practices Code, Interest Rate and Charges Policy and Grievance Redressal Policy, available at [URL]; and
- (d) the list of recovery agencies engaged by us, available at [URL].

These Terms are not your loan agreement. If a Credit Facility is sanctioned to you, its terms are set out in the Loan Documents, which you will execute separately.

If you do not agree with these Terms, please do not access or use the Platform. For any clarification, please write to us at contactus@shuhari.finance

1. DEFINITIONS

In these Terms, unless the context requires otherwise:



"**Credit Facility**" means a personal loan or other credit facility sanctioned to you by SFPL through the Platform, whether funded solely by SFPL or jointly with a co-lender or other regulated entity;

"**KFS**" means the Key Facts Statement issued to you in respect of a Credit Facility;

"**Loan Documents**" means the KFS, the sanction letter, the loan agreement and the schedules and annexures to them;

"**LSP**" or "**lending service provider**" means an agent engaged by SFPL to perform one or more functions in the customer lifecycle on SFPL's behalf;

"**Profile**" means the account registered in your name on the Platform through which you access the Services;

"**Services**" means the services made available to you on the Platform, as described in Clause 5.

Headings are for convenience only and do not affect the interpretation of these Terms. References to a Clause are to a clause of these Terms.

2. ORDER OF PRECEDENCE

In the event of any inconsistency between these Terms and any other document referred to above:

- (a) in relation to the terms of a Credit Facility — the Loan Documents shall prevail;
- (b) in relation to your personal data — the Privacy Policy shall prevail;
- (c) in relation to our conduct towards you as a borrower or prospective borrower — the Fair Practices Code shall prevail; and
- (d) in all other respects — these Terms shall prevail.

Nothing in these Terms limits, excludes or modifies any right you have, or any obligation we owe you, under applicable law or under any direction, circular or guideline issued by the RBI. To the extent any provision of these Terms is inconsistent with such a right or obligation, that provision shall be read down or severed so as to give full effect to the applicable law or RBI direction.

3. ACCEPTANCE OF THESE TERMS; CONSENT TO DATA PROCESSING

(a) By accessing the Platform or availing the Services, you agree to be bound by these Terms. If you do not agree, please stop accessing the Platform and the Services.

(b) Your consent to the processing of your personal data is **separate** from your acceptance of these Terms and is **not** given merely by accessing or using the Platform. As set out in the Privacy Policy, consent to processing is obtained only through a separate, specific and affirmative action by you at the relevant point in your journey, and the purpose of each such consent will be disclosed to you at that point.

(c) You may decline or withdraw consent at any time in the manner set out in the Privacy Policy. Where the relevant personal data is necessary for a Service you are availing, we may need to suspend, limit or discontinue that Service to that extent. Withdrawal of consent does not affect the lawfulness of processing carried out before withdrawal, and does not extinguish your obligations under a Credit Facility already availed.



4. ELIGIBILITY

(a) You may use the Platform if you are at least 18 years of age and are competent to contract under the Indian Contract Act, 1872.

(b) The Services are offered solely in accordance with Indian law and are intended for persons resident in India. We do not represent that the Services or the content available on or through the Platform is appropriate for use, or is available, in any other jurisdiction.

(c) Access to a Credit Facility is not automatic. Sanction is subject to our board-approved credit policy, your credit information report, satisfactory completion of KYC, and such other criteria as we may apply. We are not obliged to sanction any Credit Facility, or to disclose our reasons for declining an application, except where we are required to do so by applicable law.

5. THE SERVICES

(a) The Platform enables you to apply for, and where sanctioned to avail and service, personal loans and other credit facilities extended by SFPL. Depending on the product, a Credit Facility may be funded entirely by SFPL or jointly with a co-lender or other regulated entity under an arrangement permitted by the RBI, in which case the identity of the co-lender and the respective shares will be disclosed to you in the KFS before you accept the offer.

(b) The Platform also enables you to: create and manage a Profile; complete identification and verification procedures; receive and accept credit offers; execute Loan Documents electronically; set up and manage repayment mandates; make repayments and prepayments; view your outstanding balance, repayment schedule and statement of account; obtain a no-dues or closure certificate; and raise and track grievances.

(c) We may modify existing features or introduce new features or services on the Platform, and the term "Services" includes any such modification or addition.

(d) Uninstalling the App, deleting your Profile or ceasing to use the Platform does not extinguish your obligations under a Credit Facility. You will continue to be liable to repay all amounts due in accordance with the Loan Documents.

6. OUR LENDING SERVICE PROVIDERS

(a) We engage lending service providers who operate digital lending applications and perform, on our behalf and under our instructions, functions including customer sourcing and onboarding support, collection of information for credit appraisal, servicing communications and collection support. A current list of our LSPs and the digital lending applications operated by them is published on the Website.

(b) We remain responsible to you for the conduct of our LSPs and of any other service provider we engage in connection with the Services. An LSP is not the lender, does not sanction, disburse or hold your Credit Facility, and does not levy any charge on you in its own right.

7. YOUR REPRESENTATIONS AND UNDERTAKINGS

(a) You represent and warrant that all information you provide on the Platform, in relation to the Services or through your Profile is complete, true and correct on the date it is provided and will continue to be



complete, true and correct for so long as you use the Services or have a Credit Facility outstanding. You will bring any change to our notice promptly.

(b) You confirm that any Credit Facility applied for is for your own use and for the purpose stated in the application, and that you are not acting on behalf of, or for the benefit of, any other person.

(c) You must remain contactable on the contact details provided to us. If you change your contact details, or if there is a change in your KYC information, you must update us promptly. **A change in your contact details does not extinguish your obligations under the Loan Documents.**

(d) You will extend reasonable cooperation to us in the defence of any proceeding initiated against us arising from a breach by you of these Terms or the Loan Documents, including any proceeding before a regulator.

8. RESTRICTIONS ON USE

Subject to your compliance with these Terms, we grant you a non-exclusive, non-transferable, non-sublicensable, royalty-free, revocable and limited licence to use the Platform. You shall not use the Platform or the Services in any manner other than as expressly permitted in these Terms. Without limiting the generality of the foregoing, you may not:

- (a) infringe the proprietary rights of any person, including copyrights, patents, trademarks or trade secrets;
- (b) except as expressly permitted, copy, display, distribute, modify, publish, reproduce, store, transmit, post, translate, create derivative works from, or license the Services;
- (c) disassemble, decompile or reverse-engineer the whole or any part of the Platform, except to the extent that such an act cannot lawfully be prohibited;
- (d) transmit or upload any material containing viruses, trojan horses, worms, time bombs, keystroke loggers, spyware, adware or other harmful code;
- (e) use any robot, spider, other automated device or manual process to monitor or copy the Platform, the Services or any part of them;
- (f) engage in the systematic retrieval of content from the Platform to create or compile, directly or indirectly, any collection, compilation, database or directory;
- (g) impersonate any person, or use the Platform to apply for credit in the name of, or using the credentials or documents of, another person;
- (h) attempt to circumvent, disable or interfere with any security, authentication or fraud-detection feature of the Platform; or
- (i) use the Platform or the Services for any unlawful, fraudulent or malicious purpose, or in violation of applicable law.

9. AVAILABILITY OF THE PLATFORM

We do not guarantee that the Platform, any content on it, or the Services will always be available or uninterrupted. We may suspend, withdraw or restrict the availability of all or any part of the Platform or the Services for business, legal, security or operational reasons. We will endeavour to give you reasonable notice of any planned suspension or withdrawal.

10. INTELLECTUAL PROPERTY

(a) All rights, title and interest in and to the Platform and the Services, including all intellectual property rights arising out of them, are owned by or licensed to us or our LSPs. You have no rights in the Platform or the Services other than the right to use them in accordance with these Terms, and you have no right of access to the Platform in source-code form.

(b) We may request suggestions and other feedback, including bug reports, relating to the Services and the Platform ("**Feedback**"). We may use, copy, disclose, publish, display, distribute and exploit Feedback without payment of royalty, acknowledgement, prior consent or other restriction arising out of your intellectual property rights in it.

11. PRIVACY AND PERSONAL DATA

(a) We collect, process, store, share and erase your personal data in accordance with the Privacy Policy, the Digital Personal Data Protection Act, 2023 and the rules made under it, the Information Technology Act, 2000 and the rules made under it, and applicable RBI directions. **SFPL is the data fiduciary in respect of personal data processed for the purposes of the Credit Facility.**

(b) All data collected in connection with the Services is stored on servers located in India. Where any data is processed outside India, it is repatriated and deleted from servers outside India in accordance with the Privacy Policy and applicable RBI directions.

(c) We collect only such personal data as is necessary for the disclosed purpose. We do not access your device contact list, call logs, or media files stored on your device. Access to device features such as the camera, microphone or location is sought on a one-time basis, at the point of use, with your explicit consent and for the disclosed purpose only, and may be revoked by you through your device settings.

(d) You have the rights set out in the Privacy Policy, including the right to obtain a summary of the personal data processed, to seek correction and erasure, to nominate another person to exercise your rights, and to grievance redressal.

12. THIRD PARTY SERVICES

(a) The Platform may include, or link to, services, content, documents and information owned by, licensed to, or made available by third parties, including insurers, payment aggregators, verification agencies and identity providers ("**Third-Party Services**"). Where you separately avail a Third-Party Service, that service is governed by the terms and privacy policy of the relevant third party, and all intellectual property in it belongs to that third party.

(b) **Clause 12(a) does not apply to a service provider engaged by us to perform an activity on our behalf in connection with the Services** (including our LSPs, verification agencies, payment service providers and



recovery agencies). We remain responsible to you for the performance of those outsourced activities, as set out in Clause 6(b).

13. DISCLAIMERS

(a) **Nothing in this Clause 13 or in Clauses 14 and 15 operates to exclude, restrict or modify:** (i) any obligation we owe you under applicable law or any RBI direction; (ii) our liability for the conduct of our LSPs, recovery agencies or other service providers engaged by us, as set out in Clause 6(b); (iii) our liability for fraud, wilful misconduct or gross negligence on our part; or (iv) any liability which cannot lawfully be excluded or limited.

(b) Subject to Clause 13(a), the Platform and any data, information, software or content made available through it are provided on an "as is" and "as available" basis. To the fullest extent permitted by law, we disclaim all warranties, whether statutory, express or implied, including implied warranties of merchantability, fitness for a particular purpose, satisfactory quality, accuracy, title, non-infringement and compatibility. We do not warrant that the Platform will be uninterrupted, timely, secure or free from errors or harmful components.

14. LIMITATION OF LIABILITY

Subject to Clause 13(a), we shall not be liable to you for any indirect, special, incidental, consequential, punitive or exemplary loss or damage, including loss of business opportunity, loss of revenue or loss of anticipated profits, arising out of or relating to these Terms or your use of or inability to use the Platform, even if we have been advised of the possibility of such loss.

15. INDEMNITY

You shall indemnify and hold harmless SFPL, its holding companies, subsidiaries and affiliates, and their respective directors, officers, employees and agents, from and against any claim, demand, proceeding, loss, liability, damage or cost (including reasonable legal fees) suffered or incurred **to the extent arising out of** (a) your breach of these Terms or the Loan Documents; (b) the provision by you of information that is false, misleading or fraudulent; (c) your infringement of the rights of any third party; or (d) your violation of applicable law. This indemnity does not extend to any loss to the extent caused by our own breach, negligence, wilful misconduct or non-compliance with applicable law, or by the acts or omissions of our LSPs, recovery agencies or other service providers engaged by us.

16. TERM AND TERMINATION

(a) These Terms remain in effect for so long as you access or use the Platform or the Services, or have a Credit Facility outstanding.

(c) **A Credit Facility may only be recalled, accelerated or terminated in accordance with the Loan Documents, our Fair Practices Code and applicable law, and only on notice to you as provided in the Loan Documents.**

(d) Upon termination of your access to the Platform, these Terms will terminate save for those clauses that expressly or by their nature survive termination, including Clauses 1, 2, 7, 10, 11, 13, 14, 15, 22, 23 and 24. We will continue to make available to you, by such means as we notify to you, your statement of account,



repayment channels and the grievance mechanism in Clause 23 for so long as a Credit Facility remains outstanding.

(e) Termination does not affect any right, remedy or liability of either party that has already accrued.

17. CHANGES TO THESE TERMS AND THE PLATFORM

(a) We may amend these Terms and update the Platform from time to time. Where a change is material, we will give you notice through the Platform, and where required by applicable law by such other means as may be prescribed, before the change takes effect. The "Last Updated" date at the top of these Terms indicates when they were last revised.

(b) If you do not agree with a change, you must stop using the Platform and the Services. **A change to these Terms does not alter the terms of any Credit Facility already sanctioned to you.**

18. REGULATORY CHANGE

We may be required to modify, restrict or discontinue the Platform or any Service to comply with applicable law or any direction of the RBI or another authority. Where this results in your being unable to access or use all or part of the Platform or the Services, we will give you such notice as is reasonably practicable, and will make alternative arrangements for the servicing and repayment of any outstanding Credit Facility.

19. FORCE MAJEURE

Neither party shall be liable for any failure or delay in performing its obligations under these Terms to the extent caused by an event beyond its reasonable control, including act of God, flood, fire, epidemic or pandemic, war, civil disturbance, act of terrorism, strike, failure of telecommunications or power infrastructure, or any act of a government or regulator. This Clause does not excuse your obligation to repay amounts due under a Credit Facility, but we will not levy penal charges in respect of a delay attributable solely to such an event affecting our repayment channels.

20. WAIVER

No failure or delay by either party in exercising any right or remedy under these Terms operates as a waiver of that right or remedy, and no single or partial exercise of a right or remedy precludes any further exercise of it or of any other right or remedy.

21. SEVERABILITY

If any provision of these Terms is held unlawful or unenforceable by a court or other competent authority, the remaining provisions continue in effect. If an unlawful or unenforceable provision would be lawful or enforceable if part of it were deleted, that part shall be deemed deleted and the remainder of the provision shall continue in effect.

22. GOVERNING LAW AND JURISDICTION

(a) These Terms are governed by and construed in accordance with the laws of India.



(b) The courts at Bengaluru, Karnataka shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms or your use of the Platform.

23. GRIEVANCE REDRESSAL

(a) We are committed to resolving your concerns promptly and fairly. **The grievance redressal mechanism applicable to you is set out in full in our Grievance Redressal Policy**, available at [\[URL\]](#) and displayed at our registered office. That policy sets out the escalation levels, the officer designated at each level, the turnaround time applicable at each level, and the manner in which a complaint may be lodged and tracked. The Grievance Redressal Policy is to be read with these Terms, and prevails over this Clause 23 to the extent of any inconsistency.

(b) You may raise a complaint through the Platform, by writing to contactus@shuhari.finance or by contacting our Grievance Redressal Officer at grievance@shuhari.finance. The current details of our Grievance Redressal Officer, and the route for escalation to the RBI if your complaint is not resolved within the period prescribed under the Grievance Redressal Policy, are displayed on the Website.

24. MISCELLANEOUS

(a) **Assignment.** You may not transfer or assign your rights or obligations under these Terms without our prior written consent. We may assign our rights under these Terms to an affiliate, subsidiary or holding company, or to a successor in interest of the business associated with the Services, provided that any such assignment does not prejudice your rights or increase your obligations, and we will notify you of it. Any assignment or transfer of a Credit Facility will be effected in accordance with the Loan Documents and applicable RBI directions.

(b) **Notices.** Notices to us under these Terms (other than routine service communications and grievances, which should follow Clause 23) should be sent to contactus@shuhari.finance and to our registered office. Notices to you will be sent to the email address, mobile number or postal address last provided by you, or delivered through the Platform, and will be deemed received on the date of transmission or delivery.

(c) **Third party rights.** No person other than you and us has any right to enforce any provision of these Terms.

(d) **Entire agreement.** These Terms, together with the Privacy Policy and, where applicable, the Loan Documents, constitute the entire agreement between you and us in relation to their subject matter and supersede all prior understandings in relation to it.